

Nihar Kanti Rakshit And Others vs The State Of West Bengal And Others on 12 December, 2022

AD-01
Ct No.09
12.12.2022

WPA No. 25626 of 2022

Nihar Kanti Rakshit and others
Vs.
The State of West Bengal and others

Mr. Partha Sarathi Deb Barman,
Mr. Anindya Sundar Das,
Mr. Shaunak Ghosh,
Ms. Debangana Dey Nayak

.... for the petitioners

Mr. Nilotpall Chatterjee,
Ms. Amrita Panja Moulick

.... for the State

Mr. Sumit Kumar Panja,
Mr. Saurav Chaudhuri

.... for the WBSEDCL

The petitioners are labour contractors executing jobs for the West Bengal State Electricity Distribution Company Limited (WBSEDCL).

The present writ petition has been filed challenging three Office Orders of the WBSEDCL and seeking compliance with the guidelines issued by the WBSEDCL on March 26, 2008.

Heard learned counsel on the issue of entertainability of the writ petition and on the question of grant of interim order.

The first impugned Office Order dated May 17,

2013, (annexed at Page 42 of the writ petition)

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contains revised rates, terms and conditions and Rate Contract Order for operation and maintenance, etc.

In Clause 8.10 thereof, it is stipulated that in case of accident while working on the system of WBSSEDCL, if it is observed that the Contractor's Labourers had no Personal Protective Equipment (PPE) and other safety standards were not observed due to which accidents occurred, the order of the concerned contractor shall be cancelled immediately, in addition to other actions, including prosecution under the Indian Penal Code, that the Contractor is legally liable for.

Clause 8.11 provides that if the Contract Labours meet an accident while working on the system resulting in death or loss of earning capacity of the labour, his legal heir(s)/concerned labour in case of loss of earning capacity, shall be entitled to compensation as per the Employees' Compensation Act, 1923 and such compensation shall be recovered from the contractor.

The next impugned Office Order dated May 12, 2017 (page 44 of the writ petition) provides guidelines for imposition of penal measures against defaulter

Official/Outsourced Agency for erection/(O&M) work

in case of occurrence of any fatal accident due to improper shutdown.

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In the said order, it is inter alia provided that if it is observed that the Outsourced Agency had undertaken the erection/maintenance job in absence of proper supervisory personnel at worksite, without confirming proper shutdown in respect of the exact line/Feeder/Phase, non-use/non-availability of proper PPEs or execution of the job without informing the Controlling/Supervising Officer (in terms of LOA/order), it shall be immediately placed under holiday listing.

The third impugned Office Order dated July 28, 2022 (at page 56 of the writ petition) concerns administrative action against contractor(s) in case of fatal work accidents and pertain primarily to withholding new job orders to the agency/contractor as per approved rate contract if any of his/her labour meets with fatal work accident until the findings of the Permanent Enquiry Committee/Departmental Enquiry come out, as per prevailing rules. Such temporary debarment shall continue until enquiry proceedings and subsequent actions are complied with. The said order also casts liability on the contractors to be

watchful enough to ensure compliance by his/her labourers and covers topics such as the usage of PPEs, taking proper shut-down measures and observing safety measures.

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The guidelines dated March 26, 2008 on which the petitioners rely is a Circular issued by the WBSEDCL, inter alia, demarcating the liabilities and responsibilities of the concerned Officials of the WBSEDCL. The same casts several responsibilities on the said Officials with regard to violation of Labour Laws and extension of rightful legal dues without deviation to part-time/contract labours engaged by the WBSEDCL.

The Controlling Officer has been conferred the responsibility to forthwith initiate penal action against the persons found responsible for negligence/derelection of duty and unlawful activity and blacklisting the contractor concerned.

Learned counsel appearing for the petitioners argues that it is the liability of the WBSEDCL, the principal employer, to look after the safety and security measures of the workers. The limited duty of the petitioners/outsourced contractors is restricted to engaging man-power in morning and evening shifts

and engagement of mobile vans with driver fitted with tools and mobile phone for the service of LT consumers and engagement of labour during night shift in some selected Customer Care Centers.

As such, it is contended, the primary function of the contractors is to provide mobile vans duly fitted

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with equipment and to supply labourers equipped with sufficient safety gear.

However, by the impugned Office Orders, it is alleged, the WBSEDCL is seeking to exceed the liability of the contractors and to impose additional penal action against the contractors for work which the WBSEDCL Official are required to perform.

It is submitted that since the guidelines dated March 26, 2008 provide for supervision of work by the Officials of the WBSEDCL, it is beyond the responsibility of the contractors to intrude into the supervisory aspect of the work, the technical know-how of which is vested with the officials of the WBSEDCL. Hence, the contractors cannot be burdened with liability for accidents due to lack of adherence to safety measures, regarding payment of compensation and to ensure proper shutdown of the system at the sites of work.

Learned counsel for the WBSEDCL contends

that it is the responsibility of the contractors to execute the entire job assigned to them. As such, it is contractors' responsibility to provide sufficient safety gear to the workers provided by the contractors and to ensure that the said labourers adhere to all due safety and security measures during work, including proper shut-down of the system.

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Learned counsel also seeks to place reliance on a Circular dated January 31, 2012, a copy of which is handed over in Court, which contemplates a Safety Induction Form to be executed at the time of assigning jobs to contractors. It is argued that the same provides clearly that it is the contractors' duty to engage workmen by using safety gloves, helmet, safety belt, discharge rod, including tools and tackles of required numbers and prescribed standards and to provide all other necessary safety aids and, if necessary, also explain their applications. The Safety Induction Form also casts responsibility on the Contractors to observe safety rules and regulations by the workmen engaged by him/her during execution of work.

Upon hearing learned counsel a perusal of the annexures to the writ petition, it is seen that there is

an ongoing dispute between the WBSEDCL and the contractors with regard to the limits of their respective responsibilities with regard to safety and security and performance of the works.

Since several meetings were held between the WBSEDCL Officials and office bearers of the Contractors' Association, it was recorded in the Minutes of the Meeting held on October 5, 2018 between two groups that a committee would be formed

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involving persons to look into the grievances of the contractors and to come with a definite recommendation in respect of the issues involved with regard to workers' compensation.

Till the time that the committee submits its report, which was to be done by November 30, 2018, no new proceeding as per provisions for violation of safety referred to in Order No.1/2017 dated May 12, 2017 was to be initiated against any contractor.

However, the report of the said committee has not yet come, much exceeding the stipulated deadline of November 30, 2018. Since negotiations are going on, it can be deemed that the understanding between the Officials of the WBSEDCL and the Contractors with regard to no new proceeding being initiated for violation of safety as per the Office Order dated May

12, 2017 would still be valid.

The petitioners have also made out a prima facie case with regard to there being certain discrepancies and inherent contradictions in the Office Orders themselves.

In the Order dated May 17, 2013, it was stipulated that it shall be the personal responsibility of the Officer who is awarded the order that adequate PPEs are available with the Contractor and no labour is allowed to undertake any job without informing the

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concerned Officer and without observing the safety standards of the Company. If it was observed that the Contractor's labours had no PPEs and other safety standards were not observed, due to which accident occurred, in that event, the order of the concerned Contractor shall be cancelled immediately in addition to other actions including prosecution under the Indian Penal Code.

In the Officer Order dated May 12, 2017, the responsibility has been given to the Officer who allots the task for undertaking any erection or maintenance job to any outsourced agency that requires shutdown. The particular assigned employee of WBSEDCL responsible for shutting the system down, including

issuance of permit to work card/field memo, as the case may be, as designated by the Officer, must be physically present at worksite till completion of the job. For failure to shut-down the exact line/feeder/phase properly and occurrence of any fatal accident, the employee(s) concerned is to be immediately placed under suspension pending investigation/institution of departmental proceeding by the Divisional Manager.

However, in the same Officer Order, it is provided that if the Agency had undertaken the erection/maintenance job in absence of proper

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supervisory personnel at worksite, without confirming proper shut-down, non-use/non-availability of proper PPEs or execution of the job without informing the Controlling/Supervising Officer, it shall be placed immediately under holiday listing.

The said terms are patently contradictory, at least on a prima facie assessment, since, in the same breath, responsibility has been cast upon the Officials and Employees of the WBSedCL to undertake supervision of the workers, whereas responsibility is again shifted to the Contractors for non-compliance of safety measures and improper shut-down at the worksite. This smudges the boundary between the

areas of responsibility of the WBSedCL and the Contractor..

Moreover, the apparent work assigned to the Contractors is to provide workmen and mobile vans, sufficiently equipped, for the shifts-in-question and to provide adequate safety gear to the workmen for the job at hand. However, once the work begins at the worksite, the supervisory role is vested in the WBSedCL personnel, who are, naturally, technically more equipped to look after the work.

Insofar as the shut-down of the system is concerned, it is evidently a technical job, to be supervised by the WBSedCL personnel and cannot be

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left at the mercy of the Contractors, particularly since the latter are not in charge of the supervision.

The Contract Labour (Regulation and Abolition) Act, 1970 is the relevant act governing the circumstances of the present case. The scheme of the said act, in particular as reflected in the definition of "Contractor" in Section 2(1)(c), Sections 12 and 13 which govern licensing of Contractors and Chapter V, providing for Welfare and Health of Contract Labour, clearly indicates that the primary incidence of liability for the safety and health of the labour-force lies on the

Contractor. If the Contractor fails in his duty, only then the liability shifts to the principal employer.

However, there cannot be any blanket proposition that a contractor, in every case, is liable for execution of the entire work, particularly of a technical nature such as the maintenance of electricity lines.

A perusal of the communications between the parties and the minutes of the meetings as discussed above, shows that the Contractor's responsibility is up to providing a fully equipped mobile van and labourers with full safety gear.

The guidelines dated March 26, 2008 of the WBSEDCL itself, framed in the presence of the Manager and Managing Director of the WBSEDCL,

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clearly casts serious responsibility on the concerned Officers who are in charge of the works-in-question to ensure that the safety measures are fully implemented.

The moment the Contractor supplies the labour force with adequate safety equipment and sends a mobile van, also duly equipped, the liability of the Contractor apparently ends and the supervisory capacity of the Officers of the WBSEDCL take over.

There are, definitely, some discrepancies

inherent in the various Office Orders issued by the Officials of the WBSEDCL, particularly the Director of Human Resources.

However, the petitioners have made out a prima facie case as to whether such Office Orders issued by individual Officials of the WBSEDCL, who may themselves be responsible for the welfare of the labourers, can contravene the Circular dated March 26, 2008 issued by the WBSEDCL in presence of its Chairman and Managing Director.

Hence, the petitioners have made out a strong prima facie case for the writ petition to be heard on its merits.

Accordingly, the respondents shall file their affidavits-in-opposition within January 6, 2023. Reply, if any, shall be filed by January 20, 2023. The matter shall be listed for hearing on January 24, 2023.

Till February 28, 2023 or until further order, whichever is earlier, the respondents shall be restrained from taking any further action on the basis of the Office Order dated July 28, 2022 (Annexure P-

71) against any of the petitioners.

(Sabyasachi Bhattacharyya, J.)